



Merck KGaA–Bio-Techne

MN-25049

Phase 1 Determination

Acquisition may be put into effect

8 October 2026

1. Determination and statement of reasons

Notified acquisition	Merck KGaA (Merck) proposes to acquire 100% of Bio-Techne Corporation (Bio-Techne)’s issued share capital through its wholly-owned subsidiary, EMD Holdings NewCo, Inc. (Merger Sub). Merck will acquire 100% of the outstanding common stock of Bio-Techne via a merger of Merger Sub with and into Bio-Techne with Bio-Techne surviving as a wholly-owned subsidiary of Merck.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Merck, is a global science and technology company listed on the Frankfurt Stock Exchange and headquartered in Germany. Merck operates through three business sectors: its larger Life Science and Healthcare segments, as well as its smaller Electronics segment. Merck’s Life Science portfolio is primarily focused on products and technologies supporting biopharmaceutical manufacturing, while also offering a broad catalogue of biology and chemistry products, including reagents, solvents, filters and everyday lab essentials as well as specialised products and services such as contract testing services, biomonitoring and diagnostic and regulated materials. The target, Bio-Techne, is a publicly traded life sciences company headquartered in the United States, which specialises in reagents, analytical instruments, and precision diagnostics, supplying to academic researchers, biopharmaceutical companies, and clinical labs, among others.
Overlap between the Parties	Merck and Bio-Techne overlap globally in the supply of life science products, in particular: • antibodies, • cell culture products, including reagents and supplements, • bioactive small molecules, • protein analysis kits, services and instruments, • cell separation, • cell health reagents, • gene editing consumables, and • gel electrophoresis consumables.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC’s approach to considering notified acquisitions, see the ACCC’s merger assessment guidelines

	and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties, and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. In all relevant overlap products, the merged firm would continue to face competition from alternative suppliers of life science products globally. This includes significant global providers Thermo Fisher Scientific and Danaher, in the case of some products, as well as alternative suppliers that specialise in narrower sets of life science products. Some market participants expressed concern that Merck and Bio-Techne were particularly close competitors in the supply of certain products, particularly antibodies and cell culture reagents. However, market feedback, including from Australian customers, consistently identified alternative suppliers of all relevant product types in which the merger parties overlap. Market feedback identified Thermo Fisher Scientific as a particularly strong alternative supplier across a broad range of life science products.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act